

...Lead with Edge...

## PAPER IV

## ETHICS, INTEGRITY & APTITUDE

Maximum Marks : 250

(Please read each of the following instructions carefully before attempting questions)

There are FOURTEEN questions divided in two sections and printed in ENGLISH.

All questions are compulsory.

The number of marks carried by a question/part is indicated against it.

Answer must be written in the medium authorised in the Admission Certificate which must be stated clearly on the cover of this Question-cum-Answer (QCA) Booklet in the space provided. No marks will be given for answer written in medium other than the authorized one.

Word limit in questions, if specified, should be adhered to.

Any page or portion of the page left blank in the Question-cum-Answer Booklet must be clearly struck off.

## Marks Detail

| Q.No. |  | Q.No. |    |
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|       |  | Total |    |
|       |  | Marks | 94 |

Total Marks

94.5

Starting Time:- 10:05

**Closing Time:-** 1:10

**Invigilator's Signature**

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Answer questions in NOT MORE than the word limit specified for each in the parenthesis. Content of the answer is more important than its length.

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## Section A

1. (a) It appears that there is "alarming drop in integrity levels" among civil service officers, especially in the higher echelon as reported in recent times. It shows that law as deterrence, Supreme Court's judgements and naming and shaming are not very effective. Discuss its causes and consequences on citizen and administration. What innovative measures will be taken to tackle such officers? (150 words) 10

Integrity among public servants is ~~at~~ a desirable value that is mandated through various devices like code of conduct, laws, justice delivery system etc. With drop in integrity level among public officials, these mechanisms that mandate integrity come under doubt for their efficiency.

The causes of drop in integrity levels among officials are manifold. They are as follows:

- i) Large amount of discretionary powers
- ii) Poor mechanisms for ensuring transparency and accountability
- iii) Large amount of funds at their disposal.

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iv) Poor independence of anti-corruption  
institutions like CBI, LVC, Lokpal, Lokayuktas etc.

The consequences of reducing levels of integrity  
on citizen and administration are huge. They are  
as follows:

For citizens:

- the first*  
i) It leads to distrust among citizens  
*two*  
ii) It leads to poor faith in law  
*part*  
and democracy  
*are good*  
iii) It can be destabilizing in the long

For administration:

- i) It leads to inefficiency and declining  
levels of productivity  
ii) It leads to misallocation and  
misappropriation of funds  
iii) It leads to poor public support for  
tough choices that administration may take

some innovative measures to tackle such officers are:

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i) Reduce levels of discretion at official level

ii) Reduce scope for misappropriation of funds by enabling ICT usage

iii) ~~Take~~ Take to task corrupt officials and set them as examples.

These steps can help restore the level of integrity.

1. (b) Differentiate between the following
- Ethical competence and professional competence
  - Ethical management and ethical leadership
  - Ethical dilemma and crisis of conscience (150 words) 10

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3. (b) "Life will be simpler and much more enjoyable if we were all self conscious of our moral responsibility as self-imposed morality is much better than state-imposed laws in every sense". (150 words) 10

State-imposed laws are a part of the external set of checks that mandate a level of morality in the society. As apposed to this, conscience, personal ~~values~~ and values are integ internal checks that mandate morality. self-imposed morality is much better than state-imposed law, for many reasons. They are:

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i) They are more ~~easy~~ easy to  
enforce as people are themselves  
agreeable to them.

ii) They are self-regulating ~~and~~ therefore  
don't require use of peace force.

iii) In the longer run they are more  
sustainable and peaceful.

But, there is also a need for state-imposed  
laws. The reasons are:

i) Moral values vary from person to person

ii) Without uniformity in standards there  
would be chaos in the society

iii) scope for correction of moral values

it is made mandatory than optional.

Therefore, in spite of the charm of self-imposed  
morality for a society over state-imposed

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laws, there is a requirement for state-imposed  
laws to ensure stability and order in  
the society.

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4.

- (b) Ethics in Public administration in twenty-first century is likely to be different from that of the twentieth century. Explain the reasons for such changes and also discuss some prominent new values of twenty-first century which are different from twentieth century.

(150 words) 10

Ethics in public administration are products of moral values, societal norms and ideals of natural justice. As values are constantly evolving and standards of natural justice are maturing, public ethics in public administration is also constantly changing. Therefore, 21st century ethics are likely to be different from 20th century ethics.

This can be elaborated in following ways:

i) Moral values of 21<sup>st</sup> century are more aligned towards democracy, liberalization and free market economics.

In 20<sup>th</sup> century, the moral inspirations were different.

ii) Societal norms of 21<sup>st</sup> century are more sensitive to rights of disadvantaged. Like for examples, LGBT rights, transgender's right, issues of section 377 are new and are part of newer discourses.

These rights were not recognised in 20<sup>th</sup> century and therefore did not form a part of ethics in public administration.

iii) Natural justice is an ever evolving field that brings newer norms and standards with each passing decade. The change from procedure established by law to due process of law has ensured a progressive interpretation

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of natural justice.

For example, Art-21 is being given a liberal interpretation in recent times to encompass a wide array of rights and issues.

These changes have meant prominent new values in public administration. They are

as follows:

1) Concern for efficiency, transparency

and accountability

values that emphasise citizens' right to public services and changes them from passive beneficiaries to demanding

clients. Focus of productivity and utilitarian

values like cost-efficiency.

These values have brought a paradigm shift in ethics of public administration that differentiates it from 20th century ethical norms.

But some old values are still there

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5.

Discuss the following views on the relationship between corruption and salary of civil servants:

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- (a) How does low or high salary affects the conduct of civil servants?
- (b) Low salary in public agencies are among important reasons for high level of corruption. (150 words) 10

a) A salary ensures the civil servant adequate means to live and secure his/her family. It should be commensurate to maintain a standard of living that matches his/her position in the society.

In this regard, a low salary means the following:

- i) Poor ability to meet needs.
- ii) More need to resort to unfair means to fulfil needs

A high salary would ensure the following

- i) Needs being met satisfactorily
- ii) ~~P~~ Less inspiration to me resort to corrupt means.

Essentially, salary should not be the reason to make civil servants ~~greedy~~ ~~but~~

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~~greedy public servant~~

corrupt. Ensuring an adequate salary ensures civil servant is content enough to not resort to corruption.

b) Low salary can be a reason for corruption. But it needs to be observed that for a greedy public servant, no amount of salary is sufficient.

The reasons for high levels of corruption are:

i) Low levels of scrutiny, accountability and transparency.

ii) large level of discretionary powers

iii) huge amount of funds at the disposal of public servants.

The reason of low salary therefore stands reduced as an inspiration for corruption.

It could be a factor but not a dominant factor. This is because of the



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following reasons:

*Service motive*  
(i) Among lower officials, private sector salaries

are ~~known~~ *public agencies*

(ii) Public agencies pay *salaries*

indexed to inflation

(iii) Repeated pay commission hikes ensure  
salaries are optimum.

Therefore, roots of corruption lies in  
factors that usually beyond reaches of  
lower salaries.

6. Discuss the relationship between accountability and responsibility. Can we say a responsible government is ethical government? Explain.

(150 words) 10

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7.

Discuss the relationship between ethics and integrity. Can we consider discrimination and sexual harassment; indecent treatment of colleagues or citizens as loss of integrity? Explain with reasons. (150 words) 10

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Ethics stands for the system of values that dictate right and ~~the~~ wrong in one's action. Integrity stands for absolute honesty and high moral principles. A high regard for ethics is synonymous with integrity of a person. They usually go hand-in-hand.

Just as ethics are applicable to persons' personal and professional relations, integrity also applies separately to personal and professional relations.

Both, ethics and integrity are related values that are present in every detail of a person's life.

Discrimination and sexual harassment

Both acts are manifestation of negation of equality and rights of human

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and indicate a poor appreciation of these values.

Therefore it can be termed as loss of personal integrity.

Indecent treatment of colleagues or citizens

This generally results from a poor respect for humans and may emerge from a superiority complex at a personal level. This indicates a lack of regard for humanity and human values of brotherhood, love and care.

This can be therefore termed as a loss of integrity as a basic regard to humans and human values is essential for a person's integrity.

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8. Discuss the following terms which are based on popular presumptions and perceptions in civil services
- (a) One can be either 'corrupt and efficient' or 'honest and inefficient'.
  - (b) Democratic ethos and bureaucratic ethos are at loggerhead.
  - (c) The doctrine of committed bureaucracy undermines the concept of neutrality.
- (150 words) 10

9. This perception essentially means that ~~honest~~ honesty and efficiency are opposite concepts and cannot happen together. There is some merit in the perceptions for following reasons:

- 1) Honesty means following red tape and red tape means inefficiency

ii) Honesty means ~~less~~ more about following rules and rules lead to time delays. This affects efficiency.

These merits however ignore that corruption and efficiency are meaningless for public service. Also, efficiency and honesty can be managed by use of technology, e-governance and also by good policy-making and well-articulated rules and legislations.

b) Democratic ethos stand for equality of ideas while bureaucratic ethos stand for hierarchy and appropriate following of orders. Essentially democratic ethos are not followed to the point in a bureaucratic setup.

But this can be corrected by taking the following steps:

i) By allowing lower officials ability to share ideas with seniors.

ii) By allowing consensus-based decision-making at official levels to maximise democratic ethos.

c) committed bureaucracy stands for bureaucrats being committed to serve their political bosses while neutrality stands for being apolitical in one's conduct. There is a perception that committed bureaucracy is not able to maintain neutrality.

The solution to this is:

i) Bureaucracy is committed to their political bosses but are guided by laws of the land and the constitution.

ii) Neutrality in application of the constitution and the laws of the land is to be followed irrespective of the political ideology in power.

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## Section B

9. One of the states in India has experienced violent protest by a dominant caste in which there are also reports of gang-rape of women belonging to lower castes that are poor and have not been part of the protest. Even if military has been called still violence has not been controlled although abated. There are rumours that the state government issued order to administration not to take action against protesters as the government was working at political level to find out solution to their demands. The women and their community are feeling horrified and terrified by the incident and they are not speaking up even if the state administration and civil society have appealed to them to come out and file their complaints and their identity will not be disclosed. Such behaviour by them has resulted into some sections in society to question the validity of the incident and media reports. This is increasingly creating a cloud over the incident and the community is fearful of its safety.
- (a) Suppose you are the DM of one such district where the incident has been reported then what steps will be taken by you to imbibe trust in women and families so that they can come forward report to police?
- (b) Are there other ways to enquire about the incident whether it has happened or not? Explain.
- (c) Discuss the role of district police in ensuring safety to the community.

(250 words) 20

The case study involves a violent protests by a dominant caste that may have led to gang rapes of women of the lower castes. The state administration is being seen as complicit in the act. The result being the victims not coming forward to complaint fearing reprisal.

The stakeholders in the case are:

- i) The district and state administration and their credibility



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ii) The victims and their right to justice.

iii) The rule of law that needs to be upheld.

a) If I were the DM of the district in which the incident is being reported, I will take the following steps:

i) To clamp down the violent nature of the protests.

• display policemen and take the help of the SP

• ask for additional forces if required

This will help reduce the fear among the caste that feel threatened

ii) To enable trust of families and women:

• I will give out my personal contact number to the media for emergency contact

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- Additionally, I will try sensitizing the administration to be more receptive to the public with regards to their complaints.

- I will try to take action against complaints received through the procedure that the law lays down and help repose the public trust.

These steps will facilitate the victim, women and families in coming forward to report to the police.

b) If the victims are feeling threatened and not forthcoming, the other ways of enquiring veracity of the events are as follows:

- 1) By accessing the civil society networks that include NGOs, SHGs that work in the area. They are more personal

in their outreach. By reaching out to the victim through civil society, the enquiry can go forward. Civil society enjoys more trust than administration in case like these

11) By accessing hospital data of both private and public sector. This will be a surest way of verifying complaints. If there is a spike of women reporting injuries or abuse it can indicate some truth in the ~~rumours~~ rumours

c) The role of police in ensuring safety of the community is pivotal. They play this role in following ways:

1) By enforcing the law and upholding rule of law.

11) By taking complaints and acting on them

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iii) By deploying personnel at disturbed areas  
they help restore a sense of safety

iv) They act as sentinels who restore

order and peace in the community

These duties ensure safety of the  
society and its community.

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10.

Mr. A is a senior public servant who has worked in two State public service departments over a twenty-year period. In the course of performing his duties, involving primarily monetary and budgeting issues, Mr.A becomes aware that public revenue is being used inappropriately. While he is not directly responsible for this aspect of the budget, he raised his concerns about the channelling of funds from one part of the budget to another to Mr.B , the Head of Division. Mr.A learns that not only is Mr.B aware of this practice, but also that he condones it. Not long after, Mr.A is summoned to talk to Mr.B and to the Director-General about the issue. Due to the politically sensitive nature of the issue, Mr.A is told that the matter is not within his jurisdiction and therefore he should 'keep his nose out of it'. This advice is based on the fact that the incumbent government will not tolerate questions about how it puts its budget together but that it also faces electoral defeat if the matter were to be made 'public'. After much soul searching, Mr.A decides to obey his supervisors by leaving the matter alone.

- (a) Discuss the possible reasons behind Mr.A decision.  
(b) Suppose you were Mr.A then what possible options you could have taken? Discuss their merits and demerits and suggest the best course of action, giving reasons. (250 words) 20

The case involves a senior public servant who becomes aware about certain misappr malpractises in budget-making in another department.

The public servant is directed to remain silent by his bosses. The public servant decides to stay silent.

The stakeholders in this case are:

- i) the public servant and his conscience
- ii) the incumbent government
- iii) the public values of honesty and integrity

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a) There are many possible reasons for Mr. A's decision. They are as follows:

i) Mr. A realizing that it is beyond his business and should therefore need his own affairs only.

This could be a possible reason. As a bureaucrat, one should be concerned about the larger picture of the society but should be also within rules. The rules and powers of Mr. A are limited to his own department.

ii) Mr. A realizing that he has done what should have been done i.e. raising the issue with his seniors.

Beyond this it would be against rules to take up the matter beyond seniors.

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Maybe he could satisfy his conscience of having taken all possible steps to correct a wrong that came to his notice.

iii) Mr. A realizing that the responsibility for ~~the~~ wrong is ~~not~~ his and that his seniors would be affected in the long run.

He would be ~~driven~~ by his realization that justice eventually ~~finds~~ up and ~~he~~ stood as a bureaucrat should be concerned about integrity of his own work and let the

wheels of justice take care of malpractices beyond his own department.

Minimise the interference of politics in the work of the civil service.

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b) If I were Mr. A I would have the following options:

1) To report the matter to authorities that are higher up than immediate seniors.

Evaluation: This would have led to confusion from the officials or political representatives and would have addressed the malpractices. It would have led to accountability.

The demerits of this action are that it goes against official directives and bypasses hierarchy.

11) To stay silent and heed the directives required.

Evaluation: This would have led to the matter being ignored for the time being. It is an approach that is in line with bureaucratic

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in  
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discipline.

The demerit of this action is that it is passive and it does nothing to correct a known wrong.

The option that I would have taken would be the following steps:

i) Try to ascertain the extent of the malpractise myself and see if it is a gross subversion

ii) If yes, then I would take the option

①

iii) If no, then I would prefer option ②

This ensures that the greater public good and the need to adhere to bureaucratic code of conduct is properly balanced.

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Right to Service acts are part of a broader rights-based approach to social policy that has rippled through India over the past decade and a half. Many states have passed public service guarantee acts, also known as Right to Service acts.

A state government has set up the Public Service Management Department to oversee the implementation of the Right to Service acts and you have been made its head. After some time you come to observe the following facts:

First, officials often wait until towards the end of the maximum allotted time period to complete a service. It could be that officials are creating a new opportunity for bribes, taking money to speed the service up (especially for time sensitive services like caste certificates that may be required for a job or university application).

Second, lower officials did express concern about Right to Service Acts being implemented unfairly or being distracting. For example, some said that if there was to be a time limit for processing applications and completing the work within stipulated time then there should also be a limit on how many applications can be accepted. They also felt that the fear of a penalty did make them prioritize processing these applications, but at the expense of their other works.

(a) As the head of the Department how you will explain the behaviour of the officials?

(b) Except the two options which are given below, what other options are available for you to address the issues of case study. Evaluate their merits and demerits and choose the best option, giving reasons.

(i) Set up a citizen grievance redressal cell in the office.

(ii) Install CCTV in the office and fix a limit on how many applications can be accepted. (250 words) 20

The case involves implementation of Right to Service act and its problem coming to the forefront. Its implementation is throwing challenges to the conduct of officers and offices.

The stakeholders in the case are:

1) the citizens and their right as guaranteed by the Right to service act

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ii) the officials of the office and ~~their~~  
ability to meet the targets of the  
Right to service act

iii) Me, as the head of Public services  
Management Department.

a) As the head, I will explain the  
behaviour of my officials in following ways:

i) Regarding the behaviour of officers  
waiting till the end of allotted time  
to complete the service, the reasons  
could be the following

\* the officials are inundated with  
requests and find time insufficient  
to complete them. so they may  
prioritize addressing requests that  
are due immediately over requests  
that are newly made.

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\* Maybe, the official capacity is lower than required to address the number of citizen requests.

ii) Regarding the officials being distracted and not being able to complete their processing of applications along with other duties, the following could be the reasons:

1) The legislation of Right to service is relatively new and needs time for official procedures to mature enough to adjust to its implementation.

The order of procedure and official processes are yet to evolve and get integrated.

b) The options that ~~there~~ are given have following evaluations:

i) setting up of citizen grievance redressed cell

This Evaluation:

This could facilitate citizens in bringing up their issues and instances of corruption to the forefront and help address the same.

The option is useless if the flaw lies in the procedures that the administration follows.

ii) Installing CCTV and fixing a limit on the number of applications.

Evaluation:

This would address the dual problems of possible corruption and enable officials to reduce pressure to perform beyond limit.

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The flaw of this is that it essentially swiches citizens in the long run. It mak creates scope for corruption as citizens would now try to bribe to get their application evaluated as fast as possible. It would transfer bribing from the desk of the officer to the gate of the office.

The best option would be as follows:

- i) Install CCTV and fix a limit on number of application that can be accepted
- ii) Introduce a token system or any other electronic system to address bribing at the gate
- iii) Introduce priority application window for addressing emergency applications and stipulate specific conditions.

This would address the problem in a holistic manner.

12.

Water crisis is emerging a new threat for survival of human and peace and harmony in society. Many Indian cities are also facing scarcity of water and one such is Jabalpur which is located in the heart of Madhya Pradesh and lies 15 kilometres from river Narmada.

Narmada, rain, groundwater and two reservoirs are the four major sources of water for Jabalpur. Once known as the city of lakes, the water bodies have today lost their lust and it is experiencing an imminent water crisis.

Water shortage leads to long queues and street squabbles with people's patience running out. Concrete buildings and waste material, sports and business complexes are being planned in place of the retreating water bodies, without a passing thought to the consequences on environment such as drying of lakes. Scarcity of water has led to the digging of tubewells in every plot of the newly-constructed colonies which has worse effect on groundwater and consequently has further aggravated the problem with the fall of the watertable.

Earlier most of the rain that fell recharged groundwater aquifers because of dense green cover which, acted as a barrier for surface runoff. Now, with substantial removal of forest cover the available reservoirs are getting silted up. Unfortunately, there is no official policy to respond to the crisis.

(a) As a Municipal commissioner of the Jabalpur discuss the feasible solution for reviving lakes, reservoirs and solving the problem of scarcity of water at the same time ensuring the normal life of people should come under so much disruption.

(b) There can be some possible negative consequences of your solutions. Discuss strategies to overcome them? (200 words) 20

The ~~policy~~ Policy involves Jabalpur which faces waters scarcity and its administrative practices are presently not in line with the water management.

The stakeholders in the case are:

- i) the citizen of Jabalpur and their need for water
- ii) the city administration and its right to

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develop the city

iii) the surrounding nature and ecological  
balance.

a) As Municipal Commissioner I would take  
the following measures to revive lakes,  
reservoirs and solve problem of water  
(scarcity).

1) Set up a committee of experts to  
analyze the extent of water scarcity,  
the future scale of the problem,  
the city's water resources and ways to  
augment it.

ii) I will take up of the environmental  
authorities and institutions to arrest  
the receding water bodies and make  
solutions to reclaim them. restore them.



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iii) I will reconsider the buildings that are being planned in the (retreating water bodies). I will prioritise safeguarding the water body over the buildings.

iv) I would try to introduce tree plantation measures to ensure adequate recharge of groundwater and reduce silting of water bodies.

v) I will also try to regulate the number of tubewells and try to introduce metering on them to ensure judicious and sustainable usage.

b) There are many possible negative consequences of my solutions. They are as follows:

i) By reconsidering building plans, I would risk stopping development of the city.

It will attract criticism from state government and the citizens.

The criticism can be silenced by laying clearly the reasons for the action and emphasising integrity of water bodies over buildings.

11) Regulation of tubewells can result in people complaining about excessive interference.

This complaint though legitimate, has to be done and the reasons has to be communicated to the public through awareness campaigns. It should be something the public welcomes.

An easy way to do this would be to reduce scope for harassment of citizens by having in place well-planned out procedures for regulations.

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iii) Essentially, the whole plan is about  
favouring nature over rapid development.

This will generate criticisms. This needs  
to be addressed by laying down  
clearly the reasons and problems that  
necessitate the above actions. Only a  
coordinated approach that wins public  
trust and cooperation can lead to  
these difficult solutions being supported  
and facilitated.

~~PO~~ also overcome  
O Consequences

13.

Nanded is one of the most backward districts in the state of Maharashtra. It had received award for its exemplary performance in the implementation of MNREGA from the union government for 'Planning for Water Conservation' 2010-11. Since 2012-13, its implementation has almost come to a virtual standstill due to exposure of corruption.

It has happened due to two conflicting claims. The first is due to detention of many officials including Junior Engineer and *Sarpanch* and an enquiry is underway.

The local officials think that arrest was made under political influence without conducting a proper inquiry as there have been serious attempts by various political parties to show the scheme in a bad light and thwart the implementation of MNREGA. This has made them wary of dealing with MNREGA as the indiscriminate arrests have instilled a sense of fear in them.

This is despite the fact that subsequently there have been many systemic improvements. For example, most of the wage payments now go through banks rather than the post office. There is a helpline and ombudsman for grievance redressal, and so on.

The second is contrary to the allegations posed by implementing agencies; facts through Right to Information (RTI) application show that the most rampant form of corruption happened through the deliberate creation of bogus workers by some corrupt officials and a large proportion of funds have been siphoned off by them.

Meanwhile, the benefits of Water Conservation which the district has experienced for three years are at risks if the standstill of the programme is not removed soon. The poor and farmers will be the most affected people as drought, scarcity of water and declining water table put their livelihood in danger.

Suppose the state government has posted you as DM effective handling of the issues then

- (a) Identify the major flaws in handling of the above case by the district administration.
- (b) Discuss your strategies to instil confidence among local officials so that the programme can be resumed with the same enthusiasm.
- (c) Suppose you were in place of the outgoing DM then what could have been your correct responses when the scam was exposed which might have averted the pitfalls?

(250 words) 25

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14.

P worked as an Assistant with a state government run Corporation. She was reporting to M, who was working as an Officer. During the course of work, M used vulgar language and tried to develop proximity with P. At that time, P openly expressed to M she did not appreciate his behaviour. This resulted in M giving more work to P and making her wait in his cabin for prolonged periods. Since the hostile work atmosphere became unbearable for P, she verbally complained to her seniors.

Nothing happened for months. Since M threatened to spoil confidential record of P and destroy her career by falsely entangling her in corruption charges, P complained in writing. CEO of the Corporation handed complaint to the HOD of the department. The written complaint resulted into appointment of an officer to inquire into the complaint which concluded that P's complaint was false and recommended her transfer. As a result, P was transferred to other office.

P approached a union leader and an NGO for help. At that time P was not aware about the existence of the Vishakha guidelines and the Law on sexual harassment enacted in 2013. Due to their help the administration formed a complaints committee although it didn't adhere the members' criteria of Vishakha guidelines. Though P produced witnesses, committee concluded it could not be said conclusively that P was harassed by M. In addition the committee commented negatively on the nature and work performance of P. The Corporation closed the case after giving warning to M and transferred him to rural posting on promotion.

- What will be your reaction after reading the above case study?
- Analyse the ethical issues in handling of P grievances.
- Suppose you are the secretary of the department which has jurisdiction over the corporation and P sends details of her grievances then what are the options available to you? Evaluate them and choose the best option, giving reasons.

(250 words) 25

The case involves a female Ms. P who has been exploited by Mr. M. It resulted in an enquiry that was not conducted as per rules of Vishakha guidelines and resulted in Ms. P suffering for being forthcoming about her grievances.

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(10)

a) My reaction to this case is sad as it brings to light the established norms of patriarchy within the corporation. It indicates the non-supportive nature of the corporation towards women. It ignores the special needs of women especially in case like these. It ignores the amount of courage that Ms. P had to gather to come forward with the complaints. At worst it also indicates the poor awareness of Vishaka guidelines within the corporation and also the poor implementation of it.

b) There are many ethical issues in handling Ms. P's case. They are as follows:

i) Ethical dilemma of according special treatment to P's grievance over equality.

ii) Ethical dilemma of maintaining neutrality

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of the committee while recognising the nature of offence and the inherent biased circumstances against Ms. P.

iii) Ethical dilemma of relying on evidences that are not strong enough and relying on P's verbal evidences

iv) Ethical dilemma of maintaining M's integrity if the case turns out to ~~be~~ be false and motivated.

c) If I were the secretary of the department with jurisdiction over the case, then the options available to me if P sends details of her grievance are as follows:

i) Ask for a written complaint and act on it by constituting a committee as per Vishaka guidelines

This will be as per the law and SC

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directives :

ii) Temporarily suspending or transferring Mr. M or taking steps to do the same while parallelly conducting an enquiry.

This will help avoid Mr. M from influencing the process. But it has the demerit of harming his reputation.

iii) Asking Mr. M to go on leave till the committee completes the investigation and assuring Ms. P of all help and support.

This will help reduce the chances of Mr. M from taking advantage of his position while ensuring his reputation is not affected to a great extent.

The best way forward would be a combination of all steps:

i) Take a written complaint from Ms. P and



assure her of all support

ii) constitute a committee as per Vishakha guidelines and start investigation

iii) Ask Mr. M to go on leave. If he refuses, consider transferring him or suspending him.

iv) Let the investigation take its due course.

All these steps will ensure justice to all concerned with due regard for Ms.P.

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